

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 7, 2022. The complaint is directed against JUNTA DE CONSERVACION SECTOR RESIDENCIAL ELORDIGAN SAT with NIF V95649059 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that in the Community of Property in question, a video surveillance system is installed, which is poorly signposted, as it has signs indicating a monitored area that lack information about the data controller and the address to which one should turn to exercise rights.

Supporting images are provided.

The documents submitted are: - Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on November 22, 2022, according to the certificate in the file.

Once the notification was made, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an additional attempt at paper notification was made for informational purposes, in accordance with the provisions of Article 42 of the LPACAP - by postal mail - which was notified on December 2, 2022, according to the delivery proof in the file.

The respondent has not responded to the forwarding action and the notification of the request for information.

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THIRD: On February 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

PRELIMINARY INVESTIGATION REPORT

Following the request for information made by this inspection on March 7, 2023, on April 10, 2023, COMMUNITAS MUNGIA SOCIEDAD LIMITADA, CIF: B95866711, communicated that the identity of the owner of the cameras is:

JUNTA DE CONSERVACION DEL SECTOR RESIDENCIAL DE ELORIDGANE

CIF: V-95.649.059

ADDRESS FOR NOTIFICATION PURPOSES:

***ADDRESS.1

PRESIDENT: B.B.B. ***NIF.1

ADDRESS FOR NOTIFICATION PURPOSES:

***ADDRESS.2

FIFTH: On June 13, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not...

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3/8

has made allegations regarding the initiation agreement of the file, and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered a proposal for resolution in this case.

Consulting the database of this Agency, it is recorded that the Initiation Agreement was delivered to the indicated address, leaving a in the mailbox, without it being collected at the corresponding Post Office; which led to the subsequent publication via BOE on 22/09/23.

Therefore, since the notification of the act indicated below has proven unsuccessful, the Spanish Agency for Data Protection publishes this announcement by which the administrative act corresponding to the indicated procedure is notified. Procedure: PS/00183/2023

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

First. The facts arise from the complaint dated 07/11/22, through which the presence of a "poorly marked video surveillance system" is reported, providing documentary evidence in this regard.

Second. It is accredited that the main responsible party is the Junta de Conservación Sector Residencial El Ordigat Sat, with NIF V95649059.

Third. It is accredited that the informative sign is blank in its essential aspects, not indicating purpose, responsible party, or how to exercise rights under current regulations.

Fourth. It is accredited according to the police report dated 19/04/23 that the address of the respondent is ***ADDRESS.1.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this

organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

III

Obligations regarding Video Surveillance

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone carrying out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the responsible party, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information of the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

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28001 – Madrid

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5/8

It is not necessary to specify the precise location of the video surveillance equipment. This duty of information will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the event that the monitored space has several entrances, such a sign indicating the video surveillance area must be placed at each of them. This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear. The Spanish Data Protection Agency offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section “Guides and tools”).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the section “Guides and tools”), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with indicative minimum security measures.

IV

Classification of the infringement

The installation of a video camera entails the unavoidable obligation to notify the presence of the same through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR. In this case, according to the documentation provided by the complainant, although signs are installed warning that the area is under video surveillance, they cannot be considered valid, as they do not comply with the provisions of Article 22.4 of the LOPDGDD, since they lack information about the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and the address to which to direct requests for the exercise of rights. In accordance with the evidence available in this sanctioning procedure, it is considered that the facts presented violate what is established in Article 13 of the GDPR, which constitutes an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the limitation period, Article 74 of the aforementioned LOPDGDD states:

“Minor infringements shall be considered and shall prescribe after one year for the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU)

2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.”

V

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. For all these reasons, it is considered that the corresponding sanction is an administrative fine in the amount of 500 euros.

VI

Measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. The sanctioned party must proceed to complete the informative sign(s) indicating the details specified in the aforementioned regulations.

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7/8

It is warned that failure to comply with the requirements of this organization may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the

graduation of sanctions whose existence has been established,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on JUNTA DE CONSERVACION SECTOR RESIDENCIAL ELORDIGAN SAT, with NIF V95649059, a fine of €500 for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER JUNTA DE CONSERVACION SECTOR RESIDENCIAL ELORDIGAN SAT, with NIF V95649059, that pursuant to Article 58.2.d) of the GDPR, within ONE MONTH from the date this resolution becomes final and enforceable, to demonstrate compliance with the following measure:

- To provide photographic evidence (date and time) that it has completed the information poster indicating the responsible party, purpose, and method of exercising rights under the current GDPR.

THIRD: TO NOTIFY this resolution to JUNTA DE CONSERVACION SECTOR RESIDENCIAL ELORDIGAN SAT.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution is enforceable, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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8/8

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the

filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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